The Wilmot Proviso

Rep. David Wilmot (D-PA) · August 8, 1846

Source: Wilmot Proviso (Aug. 8, 1846), text via Teaching American History. Public domain.

Less than three months into the Mexican-American War, Pennsylvania Democrat David Wilmot proposed an amendment to a war-appropriations bill: any territory taken from Mexico must be free of slavery. The proviso passed the House (where free states dominated) but failed in the Senate. It never became law, yet it forced the slavery-extension question into the open and helped break the Second Party System.

Connect: The Wilmot Proviso reopens the exact question the Missouri Compromise (Class 8) tried to close. Why couldn't the 1820 solution work in 1846?

Key Passages

The condition

> Provided, That, as an express and fundamental condition to the acquisition of any territory from the Republic of Mexico by the United States, by virtue of any treaty which may be negotiated between them

The prohibition

> neither slavery nor involuntary servitude shall ever exist in any part of said territory, except for crime, whereof the party shall first be duly convicted.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The Mexican-American War (1846-48) had just begun, and the U.S. expected to gain large territories from Mexico, reopening the question of slavery in the West.
Intended Audience *Who was the source written for?*	Members of the House of Representatives voting on Polk's war-funding bill, and Northern voters.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	David Wilmot, a Pennsylvania Democrat speaking for Northern free-labor whites who wanted the West reserved for white farmers, not mainly an abolitionist.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. Contextualization (DBQ/LEQ, 1 pt): Place the Wilmot Proviso in the broader 1840s-50s sectional crisis (Mexican War, Compromise of 1850, Kansas-Nebraska Act).
2. The Proviso bans slavery from the territories but says nothing about the enslaved people already in the South or about Black Americans' rights. Why would a Northern Democrat like Wilmot draw the line there, and does that make the Proviso an 'antislavery' measure?
3. Identify ONE later compromise or law that tried to answer the same question the Proviso raised.

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> Attached to a war-funding bill, this short proviso would have banned slavery from any land won from Mexico. Though it never became law, it inflamed the sectional crisis and helped give rise to the antislavery Republican Party.

The full text of the proviso

Provided, That, as an express and fundamental condition to the acquisition of any territory from the Republic of Mexico by the United States, by virtue of any treaty which may be negotiated between them, and to the use by the Executive of the moneys herein appropriated, neither slavery nor involuntary servitude shall ever exist in any part of said territory, except for crime, whereof the party shall first be duly convicted.

Words to know

Provided — on the condition that; legal word introducing a requirement

appropriated — set aside by Congress for a specific spending purpose

involuntary servitude — forced labor of any kind, not only slavery

duly convicted — properly found guilty in court